

Comments

Section 148 & 149 respectively provides for punishment for making false claim in case of injury or death of passenger or loss, damage, etc. of goods.

150. Maliciously wrecking or attempting to wreck a train:- (1)

Subject to the provisions of sub-section (2), if any person unlawfully:-

- (a) puts or throws upon or across any railways, any wood, stone or other matter or thing; or
- (b) takes up, removes, loosens or displaces any rail, sleeper or other matter or things matter or things belonging to any railway; or
- (c) turns, moves, unlocks or diverts any points or other machinery belonging to any railway; or
- (d) makes or shows, or hides or removes, any signal or light upon or near to any railway; or
- (e) does or causes to be done or attempts to do any other act or thing in relation to any railway,

with intent or with knowledge that he is likely to endanger the safety of any person traveling on or being upon the railway, he shall be punishable with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years:

Provided that in the absence of special and adequate reasons to the contrary to be mentioned in the judgment of the court, where a person is punishable with rigorous imprisonment such imprisonment shall not be less than:-

- (a) three years, in the case of a conviction for the first offence; and
- (b) seven years, in the case of conviction for the second or subsequent offence.

(2) If any person unlawfully does any act or thing referred to in any of the clauses of sub-section (1) -

- (a) with intent to cause the death of any person and the doing of such act or thing causes the death of any person ; or

- (b) with knowledge that such act of thing is so immediately dangerous that it must in all probability cause the death of any person or such bodily injury to any person as is likely to cause the death of such person,

he shall be punishable with death or imprisonment for life

151. Damage to or destruction of certain railway properties.- (1) If any person, with intent to cause or knowing that he is likely to cause damage or destruction to any property of a railway referred to in sub-section (2), causes by fire, explosive substance or otherwise, damage to such property or destruction of such property, he shall be punishable with imprisonment for term which may extend to five years, or with fine, or with both.

(2) The properties of a railway referred to in sub-section (1) are railway track, bridges, station buildings and installations, carriages or wagons, locomotives, signaling, telecommunications, electric traction and block equipments and such other properties as the Central Government being of the opinion that damage thereto or destruction thereof is likely to endanger the operation of a railway may, by notification, specify.

Comment

Section 150 and 152 respectively provide for punishment for maliciously wrecking or attempting to wreck a train for causing any damage or destruction of railway property.

152. Maliciously hurting or attempting to hurt persons traveling by railway.- If any person unlawfully throws or causes to fall or strike at against, into or upon any rolling stock forming part of a train, any wood, stone or other matter or thing with intent, or with knowledge that he is likely to endanger the safety of any person being in or upon such rolling stock or in or upon any other rolling stock forming part of the same train, he shall be punishable with imprisonment for a term which may extend to ten years.

Comment

Section 152 provides for punishment for maliciously hurting or attempting to hurt persons traveling by railway.

153. Endangering safety of persons traveling by railway by willful act of omission.- If any person by any unlawful act or by any willful omission or neglect, endangers or causes to be endangered the safety of any person traveling on or being upon any railway, or obstructs or causes to be obstructed or attempts to obstruct any rolling stock upon any railway, he shall be punishable with imprisonment for a term may extend to five years.